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DOCUMENT 3: AI ACT - HIGH-RISK AI SYSTEM OBLIGATIONS

Regulation (EU) 2024/1689

Applicable from: August 2026

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Providers of high-risk AI systems must comply with all obligations below
BEFORE placing the system on the market. Deployers must comply with
operational obligations during use.

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ARTICLE 9 - RISK MANAGEMENT SYSTEM

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REQUIREMENT:

Providers must establish, implement, document, and maintain a risk
management system throughout the entire lifecycle of the high-risk AI system.

KEY ELEMENTS:

- Continuous iterative process: identification, analysis, estimation,
evaluation, and adoption of risk management measures
- Identification of known and reasonably foreseeable risks
- Estimation of risks that may emerge from reasonably foreseeable misuse
- Evaluation of risks based on post-market monitoring data
- Testing to identify appropriate risk management measures

RISK MANAGEMENT MEASURES must:

- Be proportionate to the risk level
- Consider the state of the art
- Take into account effects on children and vulnerable groups
- Address residual risks communicated to deployers via instructions

TESTING:

- Must be performed at appropriate times during development
- Must be against pre-defined metrics and probabilistic thresholds
- Testing on real-world conditions where appropriate

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ARTICLE 10 - DATA AND DATA GOVERNANCE

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REQUIREMENT:

High-risk AI systems that use training, validation, and testing data must apply appropriate data governance and management practices.

KEY ELEMENTS:

Training, validation, and testing datasets must:

- Be subject to data governance and management practices
- Be relevant, representative, and free from errors to the best extent possible
- Have appropriate statistical properties regarding persons or groups of persons
- Take into account characteristics of the specific geographic, contextual, behavioural, or functional setting where the system is intended to be used

DATA GOVERNANCE MUST COVER:

- Relevant design choices
- Data collection processes and origin of data
- Relevant data preparation operations (annotation, labelling, cleaning, enrichment, aggregation, de-identification)
- Formulation of assumptions regarding the data
- Assessment of availability, quantity, and suitability of data
- Examination for possible biases
- Identification of relevant data gaps or shortcomings

SPECIAL CATEGORY DATA:

Processing of special categories of personal data (race, health, etc.) for bias monitoring and correction is allowed under strict conditions.

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ARTICLE 11 - TECHNICAL DOCUMENTATION

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REQUIREMENT:

Before placing on the market, providers must draw up technical documentation demonstrating compliance with all requirements.

CONTENT MUST INCLUDE:

- General description of the AI system and its intended purpose
- Description of the system's components and development process
- Description of the architecture, design choices, and key design parameters
- Training methodologies, techniques, and algorithms used
- Description of the training data and data governance practices
- Assessment of measures for human oversight
- Description of validation and testing procedures and outcomes
- Known and foreseeable risks of the high-risk AI system
- Description of any changes made during the lifecycle
- List of harmonised standards applied
- Copy of EU declaration of conformity

Documentation must be kept for 10 years after the last system placed on market.

Format: Annex IV of the AI Act provides the full template.

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ARTICLE 12 - RECORD-KEEPING (LOGGING)

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REQUIREMENT:

High-risk AI systems must automatically record events (logs) throughout their operational lifetime to enable post-market monitoring.

LOGGING MUST ENABLE:

- Traceability of the AI system's functioning throughout its lifetime
- Monitoring for compliance with the regulation
- Appropriate level of traceability for the intended purpose
- Detection of situations leading to risks or substantial modifications

MINIMUM LOG CONTENT:

- Recording of the period of each use (start and end date/time)
- Reference database against which input data was checked
- Input data that led to the system's output
- Identity of the natural persons involved in the result verification

Storage period: minimum 6 months unless other EU/national law specifies longer.

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ARTICLE 13 - TRANSPARENCY AND PROVISION OF INFORMATION TO DEPLOYERS

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REQUIREMENT:

High-risk AI systems must be designed to operate transparently and with sufficient instructions of use for deployers.

INFORMATION PROVIDED TO DEPLOYERS MUST INCLUDE:

- Identity and contact details of the provider
- Characteristics, capabilities, and limitations of the system

(intended purpose, level of accuracy, robustness, cybersecurity)

- Known or foreseeable circumstances under which the system may fail or produce incorrect outputs
- Performance metrics
- Hardware and software requirements
- Description of any form of human oversight
- Expected lifetime and maintenance/care measures
- Description of data preprocessing requirements

The instructions must be in a language easily understood by deployers.

They must be made available before the system is put into service.

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ARTICLE 14 - HUMAN OVERSIGHT

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REQUIREMENT:

High-risk AI systems must be designed and developed to allow effective oversight by natural persons during the period of use.

HUMAN OVERSIGHT MUST ENABLE PERSONS TO:

- Fully understand the capabilities and limitations of the AI system
- Monitor operation of the AI system and detect anomalies, dysfunctions, and unexpected performance
- Remain aware of possible automation bias (over-relying on AI output)
- Correctly interpret the AI system's output
- Decide NOT to use the AI system or override, ignore or reverse its output
- Intervene in the operation and STOP the system via a "stop" button or similar procedure

SPECIFIC OVERSIGHT MEASURES:

- Must be appropriate to the risks, level of autonomy, and context
- Must be identifiable and implemented BEFORE placing on the market
- Deployers must assign qualified personnel to perform oversight
- Must include ability to interrupt the system if needed

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ARTICLE 15 - ACCURACY, ROBUSTNESS, AND CYBERSECURITY

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REQUIREMENT:

High-risk AI systems must achieve an appropriate level of accuracy, robustness, and cybersecurity throughout their lifecycle.

ACCURACY:

- Declared level of accuracy must be stated in technical documentation
- Accuracy metrics relevant to the intended purpose must be used
- Must be measured using appropriate test datasets

ROBUSTNESS:

Systems must be resilient against:

- Errors, faults, or inconsistencies in the AI system or its environment
- Attempts by third parties to alter use, outputs, or performance (adversarial robustness)
- Data or model biases
- Technical limitations (e.g., insufficient data)

Fail-safe fallback plans must be implementable.

CYBERSECURITY:

- Must be resilient against attempts to exploit vulnerabilities
- Protection against data poisoning attacks

- Protection against model poisoning attacks
- Protection against adversarial examples (inputs designed to deceive the AI)
- Technical solutions must be proportionate to the risk

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CONFORMITY ASSESSMENT PROCEDURES

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SELF-ASSESSMENT (Most high-risk AI - Annex III):

- Provider conducts internal conformity assessment
- Must verify compliance with all Articles 9-15
- Must draw up EU declaration of conformity (Article 47)
- Must affix CE marking (Article 48)
- Must register in EU database (Article 49)

THIRD-PARTY ASSESSMENT (Certain high-risk AI):

Required for:

- Biometric identification systems (unless post-remote, real-time prohibited)
- Critical infrastructure AI
- AI in medical devices and safety components of products (Annex I)

Must involve a notified body (accredited third-party conformity assessment body)

EU DECLARATION OF CONFORMITY:

- Signed by provider before placing on market
- States that all applicable requirements are met
- Must be kept for 10 years
- Must be made available to national authorities

CE MARKING:

- Affixed visibly on the AI system or its documentation
- Indicates conformity with all applicable EU requirements

- Required before placing on market or putting into service

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DEPLOYER OBLIGATIONS (Summary)

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Deployers of high-risk AI systems must:

- Use the system in accordance with instructions of use
- Assign human oversight to qualified and trained persons
- Monitor operation and report serious incidents to the provider
- Conduct Data Protection Impact Assessment if required under GDPR
- Inform employees and their representatives about use of AI in the workplace
- Keep logs generated by the AI system for at least 6 months
- Not use the system for purposes other than those intended

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Source: Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024. OJ L, 2024/1689, 12.7.2024.

ELI: <http://data.europa.eu/eli/reg/2024/1689/oj>

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